



Notification Waiver Determination

SOILCO – Go Grow

Acquisition	SOILCO Pty Ltd (SOILCO) applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in Gardens Mediums Pty Ltd (Go Grow), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	1 June 2026

Parties to the Acquisition	The acquirer, SOILCO, operates organic waste recycling facilities in New South Wales, ACT and Victoria, including a facility at Tweed Heads in northern NSW. SOILCO's facilities process food and garden organic (FOGO) waste from local councils, blending it with forestry and agricultural feedstocks (and other suppliers' inputs) to manufacture compost and soil improvement products. SOILCO supplies these products for a range of applications including urban landscaping and projects and agriculture and horticulture production systems (orchards, viticulture, turf farms, nurseries, and greenlife). SOILCO's majority shareholder, Australian Waste Management Investments is part of the I Squared Capital group (I Squared). I Squared is a global infrastructure investment firm headquartered in the United States. The target, Go Grow, manufactures and supplies potting mixes, fertilisers and garden products from a single site in Ballina NSW. Part of Go Grow's business involves processing locally sourced garden waste to produce compost and mulch which is supplied directly to retail customers, as well as farms and nurseries. Go Grow does not acquire or process FOGO waste.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: the horizontal overlap between SOILCO and Go Grow in the acquisition of waste and the supply of soil and compost products in Northern NSW is small

	b. there are alternative processors of waste and alternative providers of landscaping and specialty soil, compost and mulch in Northern NSW. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**